TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
SEPTEMBER 26, 2022
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Julian Hopkins.
Absent: Cameron Swails.
Staff: Chris Swalhah, Jane Yager-Baumrind

Mr. Wood called the meeting to order at 6 pm. He announced the upcoming Public Input Meetings to receive input from the public.

A. Approval of Agenda

- *Mr. Hopkins moved to approve the agenda. Ms. Stevens seconded the motion. All in favor.*

B. Approval of Minutes –

- *Mr. Butner moved to approve the minutes. Mr. Hopkins seconded the motion. All in favor.*

C. Public Comment

- There being no public comment, Mr. Wood continued with the agenda.

D. General Correspondence

- All correspondence received was linked to the agenda and distributed to the Board.

E. Explanation of Procedures
F. Administration of Oath

- Mr. Wood reviewed the procedures with the public. He administered the oath to all those speaking.

G. Business

1. Case V-20-2022, 1190 Moss Bluff, TMS# 557-14-00-028. Request for relief from the strict application of §156.303 (C)Table to encroach 18 feet into a required 30-foot rear yard setback for a proposed porch addition.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Joe Dickens, builder for the applicant, and Mr. Barney Lynch, owner, reviewed the request with the Board.

- Mr. Robert Gardosi, 1194 Moss Bluff, stated that they are in favor of the request. He suggested that this would be an enhancement to the neighborhood. He suggested that there are multiple similar projects in the neighborhood.

- There being no further comments, Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on extraordinary conditions noted on the plat, the lot size is limited due to the number of easements, conditions do not apply to other lots because of the configuration of the lot and the easements, denial would unreasonably restrict the utilization of the property as they are not able to add to the property or repair the existing encroachments, and will not be a detriment to the neighborhood as the neighbors are in favor of the request and if approved it will add value to the neighborhood. Motion failed on a 3 to 3 vote with Mr. Butner, Mr. Branch, and Ms. Stevens in favor; Mr. Barrow, Mr. Hopkins, and Mr. Wood opposed.*

- Mr. Wood reviewed the procedures when there is a tie vote with the Board. The Board deliberated the request.

- *Ms. Stevens moved for approval based on the findings that that it meets the hardship test as there is a hardship with the configuration of the property and the number of easements on the lot, does not apply to other property because of the layout of the lot, the property would be unreasonably restricted to utilize their property by being able to build a screened in porch, it will not be a detriment as the neighbors are in agreement, the property backs up to the golf course allowing sufficient space for the addition. Mr.*

Branch seconded the motion. Motion failed on a 3 to 3 vote, with Mr. Branch, Ms. Stevens and Mr. Butner in favor; Mr. Barrow, Mr. Wood, and Mr. Hopkins opposed.

Mr. Wood noted that based on the two motions, the Board is deadlocked and reviewed the rehearing procedures for the public.

2. **Case V-21-2022, 420A Whilden Road, TMS# 532-01-00-124. Request for relief from the strict application of §156.225 (C) to remove a 28-inch pecan tree and a 24-inch oak tree, §156.227 (A)(2) to encroach 18% into a tree protection zone, §156.303 (C)Table to encroach 3 feet into a required 15-foot front yard setback, 3 inches into a required 8-foot side yard setback, and 17 feet into a required 20-foot rear yard setback and to exceed the 40% maximum building coverage amount by 4.23%, and §156.321 (C)(2) to exceed the 40% maximum impervious surface lot area by 10% for the construction of a 1,990 square foot home.**

- Mr. Swalhah reviewed staff comments with the Board. He reviewed the correspondence with the Board.

- Mr. Todd Richardson, Synchronicity, and Mr. Chamberlin Chestnut reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval on findings that there are extraordinary conditions as the lot was subdivided prior to 1900, conditions do not apply to lots in the vicinity as it is a very small lot size, and if not approved, the site would be undevelopable, and would not be a detriment to the neighborhood, with denial of the request to exceed the 40% maximum impervious surface lot area by 10%. Mr. Butner seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Barrow, Mr. Branch, Ms. Stevens, and Mr. Wood in favor; Mr. Hopkins opposed.*

3. **Case V-22-2022, 469 Rice Hope Drive, TMS# 556-16-00-029. Request for relief from the strict application of §156.303 (C)Table to encroach**

17.5 feet into a required 30-foot rear yard setback for a proposed addition to the house.

- Mr. Swalhah reviewed staff comment with the Board.

- Mr. Bradley Cunningham and Mr. Sean Harland, architect, reviewed the request with the Board.

- Mr. Glen Bianchi, 2080 Millbrook Court, expressed concern with the impact this request would have on their property. He referred to his correspondence that was linked to the agenda. He suggested that ther request does not meet the hardship for approval as there are no extraordinary conditions as there are other lots in the neighborhood and would change the character of the neighborhood.

- Mr. Swalhah read the correspondence into the record.

- There being no further comments, Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that it has not met the hardship criteria in that the property would not be unreasonably restricted or use of the property prohibited if the request was denied, and there would be a detriment to the neighborhood as it would change the character of the neighborhood as evidenced by neighbor correspondence and testimony. Mr. Hopkins seconded the motion. All in favor.*

4. **Case S-3-2022, 447 Mathis Ferry Road, TMS# 514-16-00-080.** Request for Special Exception to construct an accessory building to be used as classroom space on the site of the Center for Jewish Life LLC in accordance with §156.325 (C)Use Table.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Lucas Boyd, architect, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval. Mr. Butner seconded the motion. All in favor.*

H. Approval of Final Order

The board members are signing the orders.

There being no further business, the meeting adjourned at 7:51 pm.

Submitted by,
L. Lynes
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